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Case Number: 25STCV10588 Hearing Date: September 9, 2026 Dept: 1

Preliminary Approval of Class Action

Settlement

Department SSC-1

Hon. Theresa M. Traber

Angel Stevens v. W.A. Benjamin Electric
Company

Case

Number: 25STCV10588

Hearing Date: September
9, 2026

TENTATIVE RULING

The Court's tentative ruling is to GRANT preliminary
approval contingent on the parties addressing the following:

1. In the Class release at Settlement Agreement

¶5.2, remove the reference to Plaintiff's PAGA Notice Letter. The release of class claims should be limited to those alleged in the Operative Complaint only. In the same section, carefully review the listed claims to be released and ensure they are consistent with those alleged on behalf of the Class in the Operative Complaint.

2. In the PAGA release at Settlement Agreement

¶5.4, the release improperly includes release “from all claims all claims (sic) for civil penalties arising under PAGA, all claims asserted in Plaintiffs Complaint or in the Plaintiff’s PAGA Notice Letter.” The PAGA release must be limited to “all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint and the PAGA Notice.” No other claims are being released. The Settlement Agreement and Notice must be revised accordingly.

3. The escalator clause stated at Notice p. 3 is inconsistent with Settlement Agreement ¶8.1. The escalator language in the Notice gives Defendant the option to shorten the Class and PAGA Periods. The parties must resolve any uncertainty regarding the Class/PAGA Period end date prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and/or administrator should review and verify the workweek total and confirm the end date of the Class/PAGA Period. Revise the agreement and notice if necessary. Ensure that the language is consistent between all documents.

The Court orders the parties to submit supplemental briefing and supporting declarations as well as revised versions of the Settlement Agreement and Class Notice to address the Court’s concerns. The parties are directed to submit the revised signed Settlement Agreement along with a red-lined copy showing all changes and a revised Class Notice with a red-lined copy showing the changes to the notice. Please ensure that all revisions of the Settlement Agreement are properly incorporated into the revised Class Notice. Also review the proposed Order, revise it to conform to the amended settlement terms, and file the revised proposed Order with the Court.

All supplemental papers are due to be filed by _____ . The Court sets a non-appearance case review for _____ to review the supplemental papers.

BACKGROUND

This is a wage and hour class action. Plaintiff Angel Stevens sues Defendant W.A. Benjamin Electric Company and seeks to

represent a class of Defendant's current and former non-exempt employees.

On January 14, 2025, Plaintiff filed with the LWDA and served on Defendant a notice under Labor Code section 2699.3, stating Plaintiff intended to serve as a proxy of the LWDA to recover civil penalties on behalf of Aggrieved Employees for alleged Labor Code violations.

On April 9, 2025, Plaintiff commenced this Action by filing a complaint alleging causes of action against Defendant for: failure to pay overtime and minimum wages; failure to provide meal breaks, rest breaks, or compensation in lieu thereof; failure to reimburse necessary business expenses; failure to provide and maintain accurate records; failure to pay wages when due; PAGA; and unfair competition.

On March 11, 2026, the Parties agreed to settle the action after a full-day mediation before Gig Kyriacou, which resulted in settlement. Terms were finalized in the long-form Class and PAGA Settlement Agreement ("Settlement Agreement"), attached as Exhibit 1 to the Declaration of Bardia A. Akhavan ("Akhavan Decl.").

Now before the Court is the Motion for Preliminary Approval of the Settlement.

SETTLEMENT CLASS DEFINITION

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"Settlement Class" means all individuals employed by Defendant as non-exempt, hourly-paid employees in the State of California at any time between April 9, 2021 through May 11, 2026. (§1.4)

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"Class Period" means the period from the period of April 9, 2021 through May 11, 2026. (§1.12)

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"Aggrieved Employees" means all persons employed by Defendant in California and classified as a non-exempt, hourly-paid employee who worked for Defendant

during the PAGA Period of February 8, 2024 through May 11, 2026. (§1.5)

“PAGA

Period” means the period February 8, 2024 through May 11, 2026. (§1.31)

TERMS OF SETTLEMENT AGREEMENT

The essential
terms are as follows:

The Gross

Settlement Amount (“GSA”) is \$367,500, non-reversionary. (§3.1)

o Escalator Clause: Defendant represents that there are no more than 7,000 Workweeks worked during the Class Period. In the event the number of Workweeks during the Class Period increases by more than 10%, or totals over 7,700 Workweeks, then the Gross Settlement Amount shall be increased proportionally by the Workweeks in excess of 7,700 Workweeks multiplied by the Workweek Value. The Workweek Value shall be calculated by dividing the originally agreed-upon Gross Settlement Amount of \$367,500 by 7,000, which amounts to a Workweek Value of \$52.50. Thus, for example, should there be 8,000 Workweeks in the Class Period, then the Gross Settlement Amount shall be increased by \$15,750.00 (8,000 Workweeks-7,700 Workweeks) x \$52.50 per Workweek. (§8.1)

§ NOTE: Inconsistent with Notice pg. 3 – Defendant represents that there are no more than 7,000 Workweeks through April 9, 2021 through May 11, 2026. In the event the number of Workweeks during the Class Period increases by more than 10%, or totals over 7,700 Workweeks, then Defendant may elect between the following two options: Option 1: the Gross Settlement Amount shall increase proportionally by the number of workweeks worked in excess of 10% (for example, if the final number of total workweeks for the Class Period increases by 11% over 7,700 workweeks, the Gross Settlement Amount shall increase by 1%). Option 2: Defendant may elect to end the Class Period and PAGA Period to the date on which the total number of workweeks reaches 7,700 work-weeks (e.g., 10% above the number of workweeks referenced in the first sentence of this paragraph). Defendant shall select an option prior to finalizing the long-form Settlement Agreement.

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The

Net Settlement Amount ("Net") (\$174,385) is the GSA minus the following:

- o Up to \$128,625 (35%) for attorney fees

(¶3.2.2)

- o Up to \$25,000 for litigation costs (Ibid.);

- o Up to \$10,000 for a Service Payment to the Named Plaintiff (¶3.2.1);

- o Up to \$4,490 for settlement administration costs (¶3.2.3);

- o Payment of \$25,000 PAGA penalty (65% or \$16,250 to the LWDA). (¶3.2.5)

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Defendant

will separately pay any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (¶3.1)

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There

is no claim form requirement. (¶3.1)

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Individual

Class Member Payments: Each

Participating Class Member will receive an Individual Class Payment calculated

by (a) dividing the Net Settlement Amount by the total number of Workweeks

worked by all Participating Class Members during the Class Period and (b)

multiplying the result by each Participating Class Member's Workweeks. (¶3.2.4) Non-Participating Class Members will not receive any

Individual Class Payments. The Administrator will retain amounts equal to their

Individual Class Payments in the Net Settlement Amount for distribution to

Participating Class Members on a pro rata basis. (¶3.2.4.2)

o Tax Allocation: 20% as wages; 80% as interest and penalties.

(¶3.2.4.1)

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PAGA

Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 35% share of PAGA Penalties (\$8,750.00) by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay Periods. (¶3.2.5.1)

o Tax Allocation: The Administrator will report the Individual PAGA Payments on IRS 1099 Forms. (¶3.2.5.2)

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"Response

Deadline" means forty-five (45) days after the Administrator mails Notice to Class Members and Aggrieved Employees and shall be the last date on which Class Members may: (a) mail Requests for Exclusion from the Settlement, or (b) mail his or her Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 15 days beyond the Response Deadline has expired. (¶1.43) The same deadline applies to workweek challenges. (¶7.6)

o If the number of valid Requests for Exclusion identified in the Exclusion List exceeds 15% of the total of all Class Members, Defendant may, but is not obligated to, elect to withdraw from the Settlement. (¶9)

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Funding

of Settlement: Defendant shall fully fund the Gross Settlement 23 Amount and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by 24 transmitting the funds to the Administrator no later than 65 days after the Effective Date. (¶4.3)

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Disbursement

of GSA: Within 7 days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all

Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments, and the Individual PAGA Payments. (§4.4)

Uncashed Settlement Checks: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. (§4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Office, Unclaimed Property Fund. (§4.4.3)

The settlement administrator will be APEX Class Action Administration. (§1.2)

The proposed Settlement Agreement was submitted to the LWDA on May 28, 2026. (Akhavan Decl., Exhibit 5.)

The named Plaintiff and class members will release certain claims against Defendant. (See further discussion below).

ANALYSIS OF SETTLEMENT AGREEMENT

Does a presumption of fairness exist?

1.

Was

the settlement reached through arm's-length bargaining? On March 11, 2026, the Parties agreed to settle the action after a full-day mediation before Gig Kyriacou, which resulted in settlement. (Akhavan

Decl., ¶5.)

2.

Were

investigation and discovery sufficient to allow counsel and the court to act intelligently? Class

Counsel represents that prior to mediation, Plaintiff obtained,

through informal discovery: (a) time and payroll records for 27.5% of Class

Members through mediation; (b) a class list of hire dates, termination dates,

and rates of pay for all Class Members; (c) wage and hour policy documents; and

(d) all documents pertaining to Plaintiff available to Defendant. (Id. at

¶4.)

3.

Is

counsel experienced in similar litigation? Class Counsel is experienced in class action

litigation, including

wage and hour class actions. (Id. at ¶42.)

4.

What

percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide:

Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, (“Should the

court receive objections to the proposed settlement, it will consider and

either sustain or overrule them at the fairness hearing.”)

CONCLUSION: The settlement is entitled to a presumption of fairness.

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Is the settlement fair, adequate, and

reasonable?

1.

Strength

of Plaintiff’s case. “The most important factor is the strength of

the case for plaintiffs on the merits, balanced against the

amount offered in settlement.” (Kullar v. Foot Locker Retail,

Inc. (2008) 168 Cal.App.4th 116,

130.)

Counsel provided the following
exposure analysis:

Violation

Maximum Exposure

Realistic Exposure

Unpaid
Wages

\$421,735.00

\$126,520.50

Meal
Period Violations

\$961,952.00

\$288,585.60

Rest
Period Violations

\$392,204.00

\$117,661.20

Wage
Statement Penalties

\$132,000.00

\$39,600.00

Unreimbursed
Business Expenses

\$55,047.00

\$16,514.10

Waiting

Time Penalties

\$25,932.00

\$7,779.60

PAGA

Penalties

\$1,633,800.00

\$322,400.00

Total

\$3,622,670.00

\$919,061.00

(Akhavan Decl., ¶¶12-33.)

2. Risk, expense, complexity

and likely duration of further litigation.

Given the nature of the class claims, the case is likely to be expensive

and lengthy to try. Procedural hurdles

(e.g., motion practice and appeals) are also likely to prolong the litigation

as well as any recovery by the class members.

3. Risk of

maintaining class action status through trial. Even if a class is certified, there is always

a risk of decertification. (See *Weinstat v. Dentsply*

Intern., Inc. (2010) 180 Cal.App.4th 1213,

1226 (“Our Supreme Court has recognized that trial courts

should retain some flexibility in conducting class

actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”).)

4. Amount offered in settlement. Counsel negotiated a settlement of \$367,500 that is approximately 10.1%-40% of the potential exposure, which is in the ballpark of reasonableness.

The settlement amount, after reduction by the maximum requested deductions, leaves \$174,385 to be divided among approximately 42 class members. Thus, the resulting payments will average \$4,152.02.

5. Extent of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members’ reactions will not be known until they receive notice and are afforded an opportunity to object and or opt-out. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

Scope of the release

Release of Claims: Effective upon entry of Judgment, the Order granting Final Approval of this Settlement, and on the date when Defendant fully fund the entire Gross Settlement Amount and fund all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: ¶15)

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Release

by Participating Class Members: For the duration of the Class Period, all Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties based on the facts stated in the Operative Complaint or in Plaintiff's PAGA Notice Letter, including:

Defendant's alleged failure to pay all wages (including overtime and minimum wages), failure to provide all meal periods and associated premiums, failure to authorize and permit all rest breaks and associated premiums, failure to maintain accurate records, failure to timely furnish accurate itemized wage statements, failure to timely pay wages upon termination (waiting time penalties), failure to provide paid sick leave, failure to pay vacation out upon separation of employment, and failure to timely pay wages during employment. (§5.2)

o Except as set forth in Section 5.2 of this

Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (§5.3)

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The

Class Release must be limited to claims based on facts alleged in the Operative Complaint alone and not on the PAGA Notice.

The Settlement Agreement and Class Notice must be revised accordingly.

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Release

by Aggrieved Employees: For the duration of the PAGA Period, all Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims all claims for civil penalties arising under PAGA, all claims asserted in Plaintiffs Complaint or in the Plaintiff's PAGA Notice Letter, including but not limited to:

Defendant's alleged failure to pay all wages (including overtime and minimum wages), failure to provide all meal periods and associated premiums, failure to authorize and permit all rest breaks and associated premiums, failure to maintain

accurate records, failure to timely furnish accurate itemized wage statements, failure to timely pay wages upon termination (waiting time penalties), failure to provide paid sick leave, failure to pay vacation out upon separation of employment, and failure to timely pay wages during employment. (§5.4)

o "PAGA Notice" means Plaintiff's January 14, 2025 letter to Defendant and the LWDA, providing notice pursuant to Labor Code section 2699.3 subd. (a). (§1.33)

o Because future PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Paragraph 5.4 of this Agreement and are eligible for an Individual PAGA Payment. (§7.5.4)

o The PAGA Release is overbroad and must be limited to the release of "all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint and the PAGA Notice." No other claims are being released.

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"Released

Parties" means: Defendant, and each of its former, present and future owners, parents, and subsidiaries, and all of its current, former, and future officers, directors, members, managers, employees, consultants, partners, shareholders, joint venturers, agents, predecessors, successors, assigns, accountants, insurers, reinsurers, and/or legal representatives. (§1.41)

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The

named Plaintiff will also provide a general release and CC § 1542 waiver. (§5.1-5.1.1)

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May conditional class certification be granted?

1.

Standards

A detailed analysis of the elements required

for class certification is not required, but it is advisable to review each

element when a class is being conditionally certified (*Amchem Products, Inc. v. Windsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a

different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn. 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.

Analysis

a.

Numerosity. There are approximately 42 class members. (*Akhavan Decl.*, ¶37.) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable through Defendant’s records. (*Akhavan Decl.*, ¶37.)

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiff alleges that the litigation is brought to resolve common issues that include whether Defendant failed to pay for all hours worked; whether Defendant provided full, timely and un-interrupted meal and rest periods; whether Class Members are entitled to premium pay for incomplete, untimely or interrupted meal or rest periods, among

other claims as set forth. (Akhavan Decl., ¶38.)

As to typicality, Plaintiff alleges that he: (1) is a non-exempt, hourly-paid employee like other Class Members; (2) complains of not being paid for all time under Defendant's control or suffered and/or permitted to work for Defendant; (3) did not receive full premium pay for meal periods that were not compliant with the Labor Code; (4) did not receive premium pay for rest periods that were not provided, among others as set forth. (Id. at ¶39.)

As to adequacy, Plaintiff represents that he is aware of the duties and risks of serving as class representative and has participated in the litigation. (Declaration of Angel Stevens.)

d.
Adequacy
of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.
Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

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Is the notice proper?

a.
Content
of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; attorney fees and costs; enhancement awards; the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing. Notice

will be issued in English and Spanish. (§1.11)

b.

Method

of class notice.

Not later than 7 days after the Court grants

Preliminary Approval of the Settlement, Defendant will simultaneously deliver the Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (§4.2) Using best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service ("USPS") mail, the Class Notice with Spanish translation. Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (§7.4.2)

Not later than 3 business days after the

Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (§7.4.3)

The deadlines for Class Members' written

objections, Challenges to Workweeks and/or Pay Periods, and Requests for Exclusion will be extended an additional 15 days beyond the 45 days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed.

(§7.4.4) Notice of Final Judgment will be posted on the Settlement Administrator's website. (§7.8.1)

c.

Cost

of class notice. As indicated above, settlement administration costs are estimated to equal approximately \$4,490. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the

Court.

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Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$128,625 (35%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs (capped at \$25,000) sought by detailing how they were incurred.

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Incentive Award to Class Representative

Class Counsel will seek a Service

Payment of \$10,000 to the named

Plaintiff. In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named

Plaintiffs must explain why they "should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class." (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial

courts should not sanction enhancement awards of thousands of dollars with "nothing more than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.'

Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was 'necessary to induce [the named plaintiff] to participate in the suit'" (Id.

at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement award at the time of final approval.